

As a Senior Indian MACT Lawyer, I hereby present the professional court-ready legal drafts as requested, strictly adhering to the specified formats and tone.

1) MACT CLAIM PETITION DRAFT

BEFORE THE HON'BLE MOTOR ACCIDENT CLAIMS TRIBUNAL, PUNE, MAHARASHTRA

M.A.C.P. No. _____ of 2024

IN THE MATTER OF:

Mr. Dummy Kumar

S/o. Late Shri Ram Kumar,
Aged 34 years,
Residing at: H-10, Ganesh Colony,
Kothrud, Pune - 411038, Maharashtra.
(Petitioner / Claimant)

VERSUS

1. **Mr. [Driver's Name to be Ascertained]**
S/o. [Father's Name to be Ascertained],
Residing at: [Address to be Ascertained].
(Driver of Car bearing Reg. No. MH-12-XY-1234)
2. **Mr. [Owner's Name to be Ascertained]**
S/o. [Father's Name to be Ascertained],
Residing at: [Address to be Ascertained].
(Owner of Car bearing Reg. No. MH-12-XY-1234)
3. **M/s. The New India Assurance Company Ltd.**
[Branch Office Address],
Pune - [PIN Code].
*(Insurer of Car bearing Reg. No. MH-12-XY-1234,
Policy No. [Policy No. to be Ascertained], valid from [Date] to [Date])*

(Respondents)

****APPLICATION FOR COMPENSATION UNDER SECTION 166 OF THE MOTOR VEHICLES ACT, 1988****

****MOST RESPECTFULLY SHOWETH:****

1. The Petitioner, Mr. Dummy Kumar, is a 34-year-old individual, working in private service and earning a substantial income of approximately Rs. 30,000/- per month. He is a law-abiding citizen and was in sound health prior to the unfortunate accident.

2. ****FACTS OF THE ACCIDENT:****

a. That on 12th March 2024, at about 10:30 AM, the Petitioner was lawfully proceeding on his two-wheeler bearing Registration No. MH-14-AA-5678, near Swargate area, Pune, Maharashtra. He was driving carefully and adhering to all traffic rules and regulations.

b. That at the said time and place, a Car bearing Registration No. MH-12-XY-1234, driven by Respondent No. 1, owned by Respondent No. 2, and insured with Respondent No. 3, came from behind at an excessive speed and in a rash and negligent manner.

c. The Respondent No. 1, without observing the traffic rules and without any warning, hit the Petitioner's two-wheeler from behind with great force, causing the Petitioner to be thrown off his vehicle and fall heavily on the road.

d. The accident was solely due to the rash and negligent driving of Respondent No. 1. An F.I.R. bearing No. XXX/2024 was lodged at Swargate Police Station, Pune, on 12th March 2024, under appropriate sections of the Indian Penal Code and Motor Vehicles Act, against the driver of the offending car.

3. ****INJURIES AND MEDICAL TREATMENT:****

a. As a direct consequence of the said accident, the Petitioner suffered severe and grievous injuries, including:

i. ****Fracture of the right femur.****

ii. ****Head injury (minor concussion).****

iii. ****Multiple abrasions on the left arm.****

b. Immediately after the accident, the Petitioner was rushed to [Name of Hospital, e.g., Deenanath Mangeshkar Hospital], Pune, where he was admitted on 12th March 2024.

c. Due to the severity of the femur fracture, an Open Reduction and Internal Fixation (ORIF) surgery was performed on 13th March 2024.

d. The Petitioner remained hospitalized for an extensive period and was finally discharged on 20th March 2024.

- e. Post-discharge, the treating doctors advised strict rest for a period of two months and follow-up visits every 15 days. Intensive physiotherapy was also advised for a minimum period of three months to aid recovery and restore mobility.
- f. The doctors have further advised that a comprehensive assessment for possible permanent disability should be conducted after 6 months from the date of the accident, indicating the potential for long-term impairment.

4. ****LOSS AND DAMAGES (COMPENSATION CLAIMED):****

The Petitioner has suffered immense physical pain, mental agony, and significant financial losses due to the accident. He seeks compensation under various heads, which are detailed as follows:

S. No.	Head of Compensation	Amount Claimed (INR)
1.	**Medical Expenses (Actual)**	
	Hospital Bill	85,000
	Medicines	12,500
	MRI Scan	8,000
	Sub-total (Actual)	**1,05,500**
2.	**Medical Expenses (Estimated Future)**	
	Physiotherapy (as advised)	15,000
	Follow-up visits, diagnostic tests, future medicines	20,000
	Sub-total (Estimated)	**35,000**
3.	**Loss of Income (Past)**	
	For 2 months of forced rest (Rs. 30,000 p.m. x 2)	**60,000**
4.	**Pain and Suffering**	**1,20,000**
5.	**Loss of Amenities & Enjoyment of Life**	**60,000**
6.	**Special Diet and Nourishment**	**15,000**
7.	**Conveyance Charges**	**15,000**
8.	**Attendant Charges**	**20,000**
9.	**Loss to Estate**	**15,000**
10.	**Loss of Future Earning Capacity / Potential Permanent Disability**	**2,00,000**
	TOTAL COMPENSATION CLAIMED	**6,45,500**
	(Rounded off to)	**6,50,000**

5. The Petitioner submits that the Respondent No. 1, as the driver, is directly liable for the negligent act. The Respondent No. 2, as the owner of the offending vehicle, is vicariously liable. The Respondent No. 3, being the insurer of the offending vehicle, is contractually and statutorily liable to indemnify the owner and pay the compensation to the Petitioner.

6. The claim is filed within the period of limitation.

7. The Hon'ble Tribunal has the territorial jurisdiction to entertain and try the present petition, as the accident occurred in Pune, Maharashtra.

****PRAYER:****

In the circumstances aforesaid, the Petitioner most respectfully prays that this Hon'ble Tribunal may be pleased to:

- a. Award a total compensation of ****Rupees Six Lakhs Fifty Thousand Only (Rs. 6,50,000/-)**** in favour of the Petitioner and against the Respondents, jointly and severally.
- b. Award interest at the rate of ****12% per annum**** on the awarded amount from the date of filing of this Petition till the date of actual realization.
- c. Award the costs of this petition.
- d. Pass any other or further order(s) as this Hon'ble Tribunal may deem fit and proper in the interest of justice and equity.

And for this act of kindness, your Petitioner shall ever pray.

****Place: Pune****

****Date: [Current Date]****

****(S. S. GILL)****

****Senior Advocate for Petitioner****

****B.A., LL.B. (Hons.)****

****Enrollment No.: MAH/1234/1990****

****Chambers: 12, High Court Annex, Pune - 411001****

****Email: ssgill.adv@lawchambers.in****

****Phone: +91 98765 43210****

****VERIFICATION****

I, Mr. Dummy Kumar, S/o. Late Shri Ram Kumar, aged 34 years, residing at H-10, Ganesh Colony, Kothrud, Pune - 411038, Maharashtra, the Petitioner above named, do hereby verify that the contents of paragraphs 1

to 7 and the Prayer Clause of this Petition are true and correct to my knowledge and belief, and no part of it is false and nothing material has been concealed therefrom.

Verified at Pune, this [Current Day] day of [Current Month], 2024.

****(Dummy Kumar)****
****Petitioner****

2) LEGAL NOTICE DRAFT (INSURANCE)

****[SENIOR ADVOCATE'S NAME/LAW FIRM LETTERHEAD]****

****S. S. GILL & ASSOCIATES****
Senior Advocates & Legal Consultants
Chambers: 12, High Court Annex, Pune - 411001
Mobile: +91 98765 43210 | Email: ssgill.adv@lawchambers.in

****Ref. No.: SSG/LN/DUMMY/MACT/001/2024****
****Date: [Current Date]****

****REGISTERED A.D./SPEED POST****

****TO,****

The Branch Manager,
M/s. The New India Assurance Company Ltd.,
[Branch Office Address],
Pune - [PIN Code].

****SUBJECT: DEMAND FOR COMPENSATION ON BEHALF OF MR. DUMMY KUMAR S/O. LATE SHRI RAM KUMAR IN CONNECTION WITH A MOTOR VEHICLE ACCIDENT DATED 12TH MARCH 2024, CAUSED BY THE RASH AND NEGLIGENT DRIVING OF YOUR INSURED VEHICLE BEARING REG. NO. MH-12-XY-1234.****

Dear Sir/Madam,

Under instructions from and on behalf of my client, **Mr. Dummy Kumar, S/o. Late Shri Ram Kumar, Aged 34 years, Residing at H-10, Ganesh Colony, Kothrud, Pune - 411038, Maharashtra** (hereinafter referred to as "my Client"), I serve upon you the following Legal Notice:

1. That on 12th March 2024, at approximately 10:30 AM, my client, Mr. Dummy Kumar, was lawfully riding his two-wheeler bearing Registration No. MH-14-AA-5678, near Swargate area, Pune, Maharashtra.
2. That at the aforesaid time and place, a Car bearing Registration No. MH-12-XY-1234, driven by its driver (whose identity is being ascertained) in a rash and negligent manner, hit my client's two-wheeler from behind, causing him to fall and sustain severe and grievous injuries.
3. That my client sustained critical injuries, including a **fracture of the right femur**, a **minor head concussion**, and **multiple abrasions on his left arm**. He required immediate hospitalization and underwent a major surgical procedure (ORIF) on 13th March 2024. He was discharged on 20th March 2024, with advice for prolonged rest, regular follow-ups, and extensive physiotherapy for three months. The treating doctors have also indicated the possibility of permanent disability, requiring an assessment after six months.
4. That the aforesaid offending vehicle, Car bearing Reg. No. MH-12-XY-1234, was insured with your company, M/s. The New India Assurance Company Ltd., under Policy No. [Policy No. to be Ascertained], which was in full force and effect on the date of the accident.
5. That my client has incurred substantial medical expenses amounting to **Rs. 1,05,500/-** for treatment, medicines, and diagnostic tests. Further, he is obligated to spend an estimated **Rs. 15,000/-** on physiotherapy and additional amounts for future medical follow-ups and disability assessments.
6. That apart from the direct medical costs, my client has suffered immense physical pain, mental agony, loss of income for two months (Rs. 60,000/-), and significant non-pecuniary losses including pain and suffering, loss of amenities, special diet, conveyance, attendant charges, and a potential loss of future earning capacity due to the grave injuries sustained.
7. That the accident occurred solely due to the gross negligence and reckless driving of the driver of your insured vehicle. Therefore, the owner of the offending vehicle is vicariously liable, and your company, as the insurer, is statutorily and contractually liable to indemnify the owner and pay the compensation to my client under the provisions of the Motor Vehicles Act, 1988.
8. My client is entitled to a comprehensive compensation for all heads of damages including, but not limited to, medical expenses, loss of income, pain and suffering, loss of amenities, and future disability. The total estimated compensation payable to my client is presently assessed at **Rupees Seven Lakhs Fifty Thousand Only (Rs. 7,50,000/-)**.

You are, therefore, hereby called upon to pay the total compensation amount of **Rupees Seven Lakhs Fifty Thousand Only (Rs. 7,50,000/-)** to my client within a period of **15 (fifteen) days** from the date of receipt of this notice.

****TAKE NOTICE FURTHER THAT****, in the event of your failure to comply with this demand within the stipulated period, my client shall be constrained to initiate appropriate legal proceedings before the Hon'ble Motor Accident Claims Tribunal, Pune, seeking the aforesaid compensation along with interest at the rate of 12% per annum from the date of the accident, and costs, entirely at your risk and cost.

Yours Faithfully,

**** (S. S. GILL) ****

****Senior Advocate****

3) WRITTEN ARGUMENTS ON COMPENSATION

****BEFORE THE HON'BLE MOTOR ACCIDENT CLAIMS TRIBUNAL, PUNE, MAHARASHTRA****

****M.A.C.P. No. _____ of 2024****

****IN THE MATTER OF:****

****Dummy Kumar****

(Petitioner)

****VERSUS****

****[Driver's Name], [Owner's Name] & M/s. The New India Assurance Company Ltd.****

(Respondents)

****WRITTEN ARGUMENTS ON BEHALF OF THE PETITIONER FOR AWARD OF COMPENSATION****

****MAY IT PLEASE YOUR LORDSHIPS/HON'BLE TRIBUNAL,****

The present petition seeks just and equitable compensation for the grievous injuries suffered by the Petitioner, Mr. Dummy Kumar, aged 34 years, in a motor vehicle accident that occurred on 12th March 2024, due to the rash and negligent driving of the Respondent No. 1. The Petitioner submits these arguments for

the assessment of compensation under various heads.

****1. BRIEF FACTS OF THE CASE:****

The Petitioner was riding his two-wheeler when he was hit from behind by the offending car (Reg. No. MH-12-XY-1234) driven by Respondent No. 1. The accident resulted in a severe ****fracture of the right femur****, a ****minor concussion****, and ****multiple abrasions****. He underwent immediate surgery (ORIF) and was hospitalized for 8 days. He has been advised two months of rest, three months of physiotherapy, and a permanent disability assessment after six months, clearly indicating the serious and long-term impact of the injuries.

****2. HEADS OF COMPENSATION:****

****A. MEDICAL EXPENSES (Actual & Future):****

The Petitioner has meticulously documented all medical expenses incurred.

*** **Actual Expenses:****

- * Hospital Bill: Rs. 85,000/-
- * Medicines: Rs. 12,500/-
- * MRI Scan: Rs. 8,000/-
- * ****Total Actual Medical Expenses: Rs. 1,05,500/-**** (Exhibit P-1, P-2, P-3)

*** **Future Estimated Expenses:****

- * Physiotherapy (as advised for 3 months): Rs. 15,000/- (Doctor's estimate - Exhibit P-4)
- * Future follow-up consultations, diagnostic tests, and contingency for rehabilitation/medicines: Rs. 20,000/-.
- * ****Total Future Medical Expenses: Rs. 35,000/-****

*** **Total Medical Expenses: Rs. 1,40,500/-****

The Hon'ble Supreme Court in ****Erudhaya Priya v. State Express Transport Corporation Ltd. (2020) 12 SCC 377**** has reiterated that actual medical expenses incurred must be fully reimbursed. The Petitioner has produced all bills and receipts.

****B. LOSS OF INCOME (Past & Future):****

*** **Past Loss of Income:****

* The Petitioner, aged 34, was engaged in private service, earning Rs. 30,000/- per month (as per salary slip/affidavit - Exhibit P-5).

* He was advised strict rest for 2 months post-discharge. During this period, he was completely incapacitated from working.

- * ****Loss of Income for 2 months: Rs. 30,000/- p.m. x 2 = Rs. 60,000/-****

*** **Loss of Future Earning Capacity / Potential Permanent Disability:****

- * The doctor's advice explicitly states: "Possible permanent disability assessment recommended after 6

months." This is a crucial indicator of potential long-term impairment. A fracture of the femur with ORIF, especially for a young person, often leads to some degree of functional limitation and discomfort, impacting daily activities and work performance.

- * Even if the exact percentage of disability is yet to be quantified, the potential for permanent disability translates directly into a loss of earning capacity and functional disability.

- * The Hon'ble Supreme Court in **Syed Sadiq v. Divisional Manager, United India Insurance Co. Ltd.** (2014) 2 SCC 735 held that compensation for loss of earning capacity due to functional disability, even if partial, must be awarded.

- * The Petitioner being 34 years old, has a long working life ahead. Considering the potential impact on his future career progression and the physical demands of any employment, a substantial amount is warranted under this head. A claim of **Rs. 2,00,000/-** as ad-hoc compensation, subject to final medical assessment, is just and reasonable.

C. PAIN AND SUFFERING:

- * The Petitioner suffered a severe fracture requiring major surgery (ORIF), a head injury (concussion), and multiple abrasions.

- * The immediate aftermath of the accident, the trauma of surgery, the post-operative pain, the discomfort during hospitalization, and the subsequent period of complete bed rest and restricted mobility, all constitute immense physical and mental suffering.

- * This is a severe compound injury scenario, not a minor scratch. The suffering is prolonged, spanning the hospitalization, recovery period, and ongoing physiotherapy.

- * The Hon'ble Supreme Court in **Raj Kumar v. Ajay Kumar** (2011) 1 SCC 343 and **Kajal v. Jagdish Chand** (2020) 4 SCC 413 has emphasized the need to award just compensation for pain and suffering, which is often difficult to quantify but a real loss.

- * Considering the nature of injuries, surgery, and prolonged recovery, a sum of **Rs. 1,20,000/-** towards pain and suffering is requested.

D. LOSS OF AMENITIES AND ENJOYMENT OF LIFE:

- * At 34 years of age, the Petitioner is in the prime of his life. The injuries and the ensuing recovery period have undoubtedly curtailed his ability to pursue normal activities, hobbies, social engagements, and enjoy life's simple pleasures.

- * The temporary loss of mobility and potential permanent limitations will significantly impact his quality of life.

- * A sum of **Rs. 60,000/-** is prayed for this head.

E. SPECIAL DIET AND NOURISHMENT:

- * Post-surgery and during the recovery phase, a patient with a femur fracture requires a highly nutritious and specialized diet to facilitate healing and regain strength. This entails additional expenditure beyond normal household food costs.

* A sum of **Rs. 15,000/-** is claimed under this head.

****F. CONVEYANCE CHARGES:****

* The Petitioner had to commute to the hospital for follow-ups, diagnostic tests, and physiotherapy sessions. He was unable to use public transport or his two-wheeler due to his condition and relied on private conveyance.

* A sum of **Rs. 15,000/-** is claimed for such essential conveyance.

****G. ATTENDANT CHARGES:****

* During hospitalization and for the initial period of recovery at home, the Petitioner required assistance for daily activities such as bathing, dressing, and movement. This necessitated either hiring an attendant or a family member sacrificing their time.

* A sum of **Rs. 20,000/-** is claimed under this head.

****H. LOSS TO ESTATE:****

* This head covers miscellaneous expenses and other financial implications of the accident, not specifically covered elsewhere.

* A sum of **Rs. 15,000/-** is claimed.

****3. INTEREST AND COSTS:****

The Petitioner is entitled to interest on the awarded amount from the date of filing the petition till realization, as per Section 171 of the Motor Vehicles Act, 1988. Given the prevailing rates and the delay in receiving justice, an interest rate of **12% per annum** is just and equitable. The Petitioner is also entitled to the costs of these proceedings.

****4. TOTAL COMPENSATION SUMMARY:****

S. No.	Head of Compensation	Amount (INR)
:-----	:-----	:-----
1.	Medical Expenses (Actual)	1,05,500
2.	Medical Expenses (Estimated Future)	35,000
3.	Loss of Income (Past)	60,000
4.	Pain and Suffering	1,20,000
5.	Loss of Amenities & Enjoyment of Life	60,000
6.	Special Diet and Nourishment	15,000
7.	Conveyance Charges	15,000
8.	Attendant Charges	20,000
9.	Loss to Estate	15,000

10.	Loss of Future Earning Capacity / Potential Permanent Disability 2,00,000	
	GRAND TOTAL	**6,45,500**

****CONCLUSION:****

It is most respectfully submitted that the Petitioner has suffered grievous injuries and significant losses due to the undisputed rash and negligent act of the Respondent No. 1. The Respondent No. 3, as the insurer, is duty-bound to compensate the Petitioner for the losses incurred. The Petitioner prays that this Hon'ble Tribunal, considering the totality of the circumstances, the evidence adduced, and the precedents of law, be pleased to award the aforementioned compensation along with interest and costs, to ensure that complete justice is rendered.

****Dated: [Current Date]****

****Place: Pune****

****(S. S. GILL)****

****Senior Advocate for Petitioner****